



U.S. Department
of Transportation

Research and
Special Programs
Administration

JUL 2 1996

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11251
(FIRST REVISION)

EXPIRATION DATE: April 30, 1998
See Appendix A for PTE Expiration
date(s)

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Akzo Nobel Chemicals Inc., Chicago, Illinois
(See Appendix A to this document for a list of additional grantees)
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of approved organic peroxides in UN 4H2 solid plastic boxes. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Sections 173.225(d)(1) and (2).
5. BASIS. This exemption is based on Akzo Nobel Chemicals Inc., application dated April 2, 1996 submitted in accordance with 49 CFR 107.105.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Organic Peroxides*	5.2	As appropriate	II

*This includes all types both liquid and solid, which are listed in 173.225(b) or which have been approved under the provisions of 173.128(d).

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Organic peroxides are authorized to be packaged in UN 4H2 solid plastic boxes conforming to the requirements of 49 CFR part 178 at the Packing Group II performance level.

- (1) Organic peroxides must be packed in UN 4H2 boxes with suitable inner receptacles. For liquids organic peroxides, inner receptacles must be suitable for liquids Type B and C peroxides are prohibited in inner metallic receptacles;

- (2) The maximum quantity or net mass allowed per packing method:

Liquids or Solids
A or B

OP1	.5 kg
OP2	.5 kg ¹
OP3	5 kg
OP4	5 kg ²
OP5	25 kg
OP6	50 kg
OP7	50 kg
OP8	100 kg

- (1) OP2A and OP2B are limited to 10 kg maximum net mass of the completed package.

- (2) OP4A and OP4B are limited to 25 kg maximum net mass of the completed package.

8. SPECIAL PROVISIONS. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel, cargo aircraft only, and passenger aircraft.

10. MODAL REQUIREMENTS: None.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 USC Section 5101 et seq.:

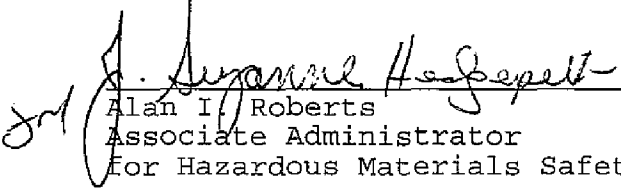
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

JUL 2 1996


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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